IN THE INDUSTRIAL COURT OF MALAYSIA

CASE NO.: 12/4-1193/24

BETWEEN

SUMITRA WOODHULL

AND

CREDENCE CONSULTING (M) SDN BHD

AWARD NO.: 1877 OF 2025

BEFORE	**: Y.A. PUAN CHOW SIEW LIN - CHAIRMAN**
VENUE	**:** Industrial Court of Malaysia, Kuala Lumpur
DATE OF REFERENCE	**:** 23.09.2024.
DATE(S) OF MENTION	**:** 19.11.2024, 19.12.2024, 16.01.2025, 21.05.2025 & 08.07.2025.
DATE OF HEARING	**:** 14.07.2025.
WRITTEN SUBMISSION (CLAIMANT)	**:** 14.08.2025 & 08.09.2025.
WRITTEN SUBMISSION (RESPONDENT COMPANY COMPANY)	**:** 27.08.2025 & 10.09.2025.
REPRESENTATION	**:** Claimant - self represented.
	Ms. Chan Wai Yeen Messrs. Karmen, Yeen, Kim & Co - Counsel for the Respondent Company

REFERENCE:

This is a reference from the Director General of Industrial Relations Malaysia pursuant to *Section 20(3) of the Industrial Relations Act 1967 ("the Act")* in respect of the dismissal of **SUMITRA WOODHULL** ("the Claimant") by **CREDENCE CONSULTING (M) SDN BHD** ("the Respondent Company Company") on 22nd April 2024.

AWARD

PRELIMINARY

[1] Before commencement of the trial, the Court had explained to the Claimant the different stages of proceedings when each witness testified in Court, being the examination-in-chief, cross-examination and re-examination of witnesses. After such explanation, the Court had checked with the Claimant to ascertain she understood the different stages of the proceedings to which she had confirmed so.

[2] This Court has considered all the notes of proceedings, documents, cause papers, submissions and bundles of authorities in handing down this Award namely:-

(i) The Claimant's Statement of Case dated 11.11.2024 ("**SOC**");

(ii) The Respondent Company Company's Statement in Reply dated 17.12.2024 ("**SIR**");

(iii) The Claimant's Bundle of Documents ("**CLB-1**");

(iv) The Respondent Company's Respondent Bundle of Documents ("**COB-1**");

(v) The Claimant's Witness Statement (Sumitra Woodhull) dated 14.07.2025 ("**CLWS-1**");

(vi) The Respondent Company's Witness Statement (Syed Danial Matin bin Syed Alwi) dated 14.07.2025 ("**COWS-1**");

(vii) The Respondent Company's Witness Statement (Lim Eddie) dated 14.07.2025 ("**COWS-2**");

(viii) The Respondent Company's Witness Statement (Wong Dong Ni) dated 14.07.2025 ("**COWS-3**");

(ix) The Claimant's Written Submission dated 09.08.2025 ("**Claimant's Submission**");

(x) The Claimant's Statement in Reply to the Respondent Company's Written Submissions dated 27.08.2025 ("**Claimant's Reply**");

(xi) The Respondent Company's Submission dated 25.08.2025 ("**Respondent Company's Submission**") and the Respondent Company's Bundle of Authority ("**CO BOA**"); and

(xii) The Respondent Company's Submission in Reply dated 08.09.2025 ("**Respondent Company's Reply**") and Respondent Company's Bundle of Authority ("**CO BOA-2**").

BRIEF FACTS

[3] The Claimant commenced employment with the Respondent Company on 21.03.2024 as Manager, Risk Advisory Services. She was placed under probation for six months from 21.03.2024.

[4] The Claimant had tendered her resignation on 22.04.2024 claiming constructive dismissal. Her last drawn basic salary was RM6,000.00 per month.

THE CLAIMANT'S PLEADED CASE

[5] In her SOC, the Claimant pleaded, inter alia, as follows:

(a) The Claimant commenced employment on 21.03.2004 as Manager, Risk Advisory Services.

(b) The Claimant had tendered her resignation on 22.04.2024 ("the said Resignation Letter") on grounds of constructive dismissal due to the following alleged collective coercive conditions:

(i) Continuous harassment of the Claimant by the Respondent Company during the Claimant's Replacement Leave Day on 19.04.2024 and Half Day Leave on 22.04.2024 (for which there was no proof of non-attendance to any important nor outstanding matters) via the WhatsApp messages sent to the Claimant and further with no justification for the humiliation, verbal abuse, degrading and bullying of the Claimant by the Respondent Company on the Respondent Company's WhatsApp platform ("the Group Chat");

(ii) There were allegations by the Respondent Company (during the verbal confrontation with the Claimant at the Respondent

Company's office on 22.04.2024) that the Claimant did not take back her laptop to continue working on the Claimant's leave day which violates the labour laws of Malaysia coupled with victimization, harassment and coercive conduct which all collectively tantamount to constructive dismissal;

(iii) Pursuant to the Respondent Company's protocols, the Claimant was required to fill up details of tasks completed daily through the Respondent Company's computerized system and therefore the harassment and abuse by the Respondent Company was baseless, unfounded, prejudicial and damaging to the reputation of the Claimant as a legally qualified professional;

(iv) Pursuant to the verbal discussion between the Claimant and Ms. Koey Leow, the HR Manager ("HR Manager") when the Claimant attended office during the second half of 22.04.2024 ("the said discussion"), the Claimant had been verbally advised to opt for a waiver of the notice period of two (2) weeks to which the Claimant had objected to. The Claimant had informed the HR Manager that she was willing to serve the notice but was informed by the HR Manager that the Respondent Company was not willing to pay the Claimant the salary for the 'notice in lieu' and that the Respondent Company would treat 22.04.2024 as the Claimant's last working day with the Respondent Company. The Claimant contended that the deduction of the

said two (2) weeks pay tantamount to an unlawful deduction of the Claimant's salary pursuant to the labour laws of Malaysia;

(v) The Respondent Company had disabled the Claimant's access to the HR Software known as HREasily and thus, the Claimant was unable to obtain a copy of the payslips;

(vi) During the said discussion, the Respondent Company had mentioned that the performance of the Claimant was suddenly under review (without stating any cogent reasons justifying the same) and that a discussion would be had with the Claimant in relation to this matter. The Claimant contended there was nothing that the Claimant had done to trigger this sort of abrupt action and that this was a manner in which the Respondent Company desired to harass the Claimant into resigning; and

(vii) When the Claimant had sent the Respondent Company a message on the Group Chat on 22.04.2024, stating that the Claimant would tender her resignation on 22.04.2024 after being humiliated on the said platform, the Respondent Company had stated that they would be happy to accept the Claimant's resignation. The Claimant contended that this evidenced the Respondent Company's intention to coerce the resignation of the Claimant as there was no suggestion of any discussion pertaining to the Claimant's employment with the Respondent Company.

A copy of the said Resignation Letter is reproduced below (with both parties' addresses deleted) for ease of reference:

"*Date: 22-04-2024*

Sumitra Woodhull

Credence Consulting (M) Sdn. Bhd.

For the Attention of: Syed Danial Matin / Eddie Lim

Dear Sirs,

Re: Letter of Resignation On The Grounds Of Constructive Dismissal

---

The matter above refers.

I am tendering my resignation today on the grounds of ***continuous harassment during my Replacement Leave Day on 19-04-2024 and Half Day leave on 22-04-2024 for which there is no proof of non-attendance to any important nor outstanding matters via the whatsapp messages sent to me and further with no justification for the humiliation, verbal abuse, degrading and frankly speaking bullying of me on the Company Whatsapp platform.*** *There were allegations that I did not take back my laptop to continue working on my leave day which violates the labour laws of Malaysia coupled with victimization, harassment and coercive conduct which tantamounts to constructive dismissal for which I reserve my rights pursuant to the labour laws of Malaysia which governs my employment with the Company.*

I refer to the verbal discussion between me and Ms. Koey Leow, the HR Manager during my attendance at the office during ***the second half of 22-04-2024 wherein I was verbally advised to opt for a waiver of the notice period of two (2) weeks during my probationary period pursuant to Clause 3.3 of the 'Terms and Conditions of Employment' to which I have objected as I had informed Ms. Koey that I am willing to serve the notice but I was informed by her that the Company was not willing to pay to me the salary for the 'notice in lieu' and that they would treat today (22-04-2024) as my last working day with the Company.***

This letter also serves as evidence of the circumstances relating to my forced resignation as I intend to pursue any claims for compensation due to me pursuant to the labour laws of Malaysia.

Yours faithfully,

Sumitra Woodhull"

THE RESPONDENT COMPANY'S PLEADED CASE

[6] The Respondent Company had pleaded in its SIR, *inter alia*, as follows:

(a) The Respondent Company stated that the resignation was voluntarily and uncoerced;

(b) The Claimant did not bring her grievance to the Respondent Company to resolve her alleged grievances (which were denied by the

Respondent Company), despite opportunities provided by the Respondent Company to discuss the same;

(c) It was denied that the Claimant was coerced into resigning and any allegations of harassment, victimization, or coercion were baseless, unfounded, and made in bad faith;

(d) The Respondent Company further asserted as follows:

(i) All conversations and/or messages sent in the Group Chat pertained to the daily operations of the business, with some directly relating to the Claimant's duties and responsibilities. The messages were intended solely to ensure that her duties and responsibilities could be covered by other colleagues during her leave day. The Respondent Company denied any claims of harassment, humiliation, verbal abuse, degrading, or bullying of the Claimant in these communications;

(ii) The Respondent Company denied requesting the Claimant to continue working during her leave day. The Respondent Company merely sought to confirm that the Claimant had access to her work email while on leave, so that she could delegate her duties to a colleague in the event of an emergency;

(iii) The Claimant failed to complete certain tasks assigned to her. As these tasks were urgent and required submission to the

Respondent Company's client, the Respondent Company had no choice but to clarify the matter with the Claimant during her leave. As such, the Respondent Company called for a performance review on 22.04.2024, with the intention of addressing the Claimant's performance issues, clarifying expectations, and aligning the expectations between both parties;

(iv) On 22.04.2024, the Claimant was on Emergency Half-Day Leave, which was not applied for in accordance with the Respondent Company's policy. On this day, the Respondent Company enquired about an incomplete task assigned to the Claimant and, instead of addressing the Respondent Company's query, the Claimant ignored the messages and chose to reply in the Group Chat by announcing her intention to tender her resignation. This left the Respondent Company with no option but to accept her resignation;

(v) Although the Claimant was on Half-Day Leave on 22.04.2024, she arrived late to the office that day. The Respondent Company attempted to resolve the matter by discussing the Claimant's performance and resignation with the Claimant. During this meeting, the Respondent Company merely asked the Claimant whether she would prefer a waiver of the two-week notice period as provided in the contract. However, the Claimant responded in an unprofessional and dismissive manner to the Respondent

Company's inquiry. The Claimant further escalated the situation by threatening to file a police report against the Respondent Company. Shortly thereafter, she abruptly left the office at approximately 3:00 PM and did not return;

(vi) The Claimant failed to report to work on 23.04.2024, leaving the Respondent Company with no choice but to treat her resignation as having immediate effect. The Respondent Company sent the Claimant an email on 23.04.2024 requesting that the Claimant either respond by 6:00p.m. or report to work. However, the Claimant responded only at 7:00p.m. and failed to report to work thereafter. The Claimant did not return to work at all after 22.04.2024; and

(vii) The Claimant had failed to lodge a formal grievance or take any reasonable steps to resolve her alleged concerns before tendering her resignation.

THE LAWS & ISSUES

[7] The approach to be taken by the Industrial Court when dealing with a reference under Section 20 of the Act was stated clearly by the then Supreme Court in the case of ***Wong Chee Hong v Cathay Organisation (M) Sdn. Bhd [1998] 1 CLJ (Rep) 298*** as follows:

"*When the Industrial Court is dealing with a reference under section 20, the first thing that the Court will have to do is to ask itself a question whether there was a dismissal, and if so, whether it was with or without just cause or excuse.*"

The Laws & the Applicable Test in Constructive Dismissal

[8] It has been well established by our Courts that the proper approach in deciding whether constructive dismissal has taken place is not to ask oneself whether the employer's conduct was unfair or unreasonable (the unreasonableness test) but whether "the conduct of the employer was such that the employer was guilty of a breach going to the root of the contract or whether he has evinced an intention no longer to be bound by the contract". The then Supreme Court in ***Wong Chee Hong's case (supra)*** had affirmed that the contract test is to be applied for constructive dismissal cases. As per Salleh Abas LP at pages 301-302:

"*The common law has always recognized the right of an employee to terminate his contract of service and therefore to consider himself as discharged from further obligations if the employer is guilty of such breach as affects the foundation of the contract or if the employer has evinced or shown an intention not to be bound by it any longer……..*

……..Therefore we cannot see how the test of unreasonableness which is the basis of the much advocated concept of constructive dismissal by a certain school of thought in UK should be introduced as an aid to the interpretation of the word "dismissal" in our s. 20. We think that the word

"dismissal" in this section should be interpreted with reference to the common law principle. ***Thus it would be a dismissal if an employer is guilty of a breach which goes to the root of the contract or if he has evinced an intention no longer to be bound by it. In such situation the employee is entitled to regard the contract as terminated and himself as being dismissed.*** *(See Bouzourou v. The Ottoman Bank [1930] AC 271 and Donovan v. Invicta Airways Ltd. [1970] Lloyd's LR 486).*"

[emphasis added]

[9] To successfully claim for constructive dismissal, the Claimant ought to prove all conditions stated in the case of ***Bayer (M) Sdn Bhd v Anwar bin Abd Rahim [1996] 2 CLJ 49*** (which was subsequently affirmed in its appeal at **[1998] 2 CLJ 197**) as follows:-

"*Thus, it is settled law that the test applicable in a constructive dismissal case is "the contract test" and not "the test of reasonableness". To claim constructive dismissal, four conditions must be fulfilled. These conditions are:*

(1) There must be a breach of contract by the employer;

(2) The breach must be sufficiently important to justify the employee resigning;

(3) The employee must leave in response to the breach and not for any other unconnected reasons; and

(4) He must not occasion any undue delay in terminating the contract, otherwise he will be deemed to have waived the breach and agreed to vary the contract.

(See Wong Chee Hong v. Cathay Organisation, supra)."

[10] The standard of proof applicable to dismissal cases is the civil standard of proof on a balance of probabilities as enunciated by the Court of Appeal in the case of ***Telekom Malaysia Kawasan Utara v Krishnan Kutty Sanguni Nair & Anor. [2002] 3 CLJ 314***.

The Issues

[11] The issue before this Court is whether the Respondent Company is guilty of conduct which is a significant breach going to the root of the contract of employment, or which shows that the Respondent Company no longer intends to be bound by one or more of the essential terms of the contract that entitled the Claimant to treat herself constructively dismissed. Therefore in this case, the burden of proof is on the Claimant to prove all conditions enunciated in the case of ***Bayer (M) Sdn Bhd v Anwar bin Abd Rahim*** **[supra]** are satisfied, on a balance of probabilities.

[12] If the Court finds the Claimant has managed to establish that she had been constructively dismissed by the Respondent Company, then the burden to prove the Claimant's dismissal was with just cause or excuse, shifts to the Respondent Company. In the event the Claimant fails to establish that she had been constructively dismissed, then there is no onus whatsoever on the Respondent

Company to establish anything for in such a situation no dismissal has taken place and the question of it being with just cause or excuse would not arise.

EVALUATION OF EVIDENCE & FINDINGS

[13] The Court of Appeal in ***Sanbos (M) Sdn Bhd v Gan Soon Huat [2021] 4 MLJ 924; [2021] 6 CLJ 700; [2021] 3 ILR 11*** held that the Industrial Court shall only address reasons stated in the letter of resignation and/or constructive dismissal for leaving employment and not other reasons raised during the hearing of any claim for constructive dismissal:-

> "*[38] …As stated in the authorities we cited earlier, an employee is only entitled to regard himself as dismissed if there is a breach of the fundamental terms of the contract of employment.* ***In the letter of resignation, the respondent only gave two reasons for leaving employment, i.e. the revision of sales commission rate and the change in his area of sales coverage which would reduce his monthly earnings. Therefore, the only question that arises is whether these two complaints amounted to a breach of the fundamental terms of the employment contract. The other reasons he advanced at the Industrial Court hearing are not relevant as an employee cannot rely on reasons not given for considering himself constructively dismissed.*** *Anyway, both the Industrial Court and High Court rightly did not address them*."
>
> [Emphasis added]

[14] The Claimant had alleged in the said Resignation Letter, the following grounds that made her tender her resignation claiming constructive dismissal:

(a) alleged continuous harassment during her Replacement Leave Day on 19.04.2024 and Half Day leave on 22.04.2024 for which there was no proof of non-attendance to any important nor outstanding matters;

(b) allegations that she should take back her laptop to continue working on her leave day which violates the labour laws of Malaysia;

(c) alleged humiliation degrading and bullying of her on the Group Chat; and

(d) alleged request by the Respondent Company for a waiver of the notice period of two (2) weeks.

[15] The Respondent Company had replied and denied allegations in the said Resignation Letter vide an email dated 23.04.2024 ("the Respondent Company's Reply").

[16] The Respondent Company's managing Director, Mr. Lim Eddie (COW-1) had testified in COWS-1 as follows:

"*Q11: Can you explain how internal communications are typically handled, especially when employees are on leave?*

A11: We maintain a WhatsApp group dedicated to the daily operations of the business. Email is also employed as an internal communications channel. When employees are on leave, any urgent tasks assigned to the said employee are reallocated to colleagues to maintain workflow. However, employees are required to keep access to their email during leave to ensure urgent communications are promptly forwarded to their colleagues.

Q12: The Claimant has alleged that she was harassed, humiliated, verbally abused, degraded, or bullied through the Respondent Company's WhatsApp group. Can you explain what actually took place in the Respondent Company's WhatsApp group and how communication is typically handled?

A12: I deny the allegation. The messages exchanged within the Respondent Company's WhatsApp group were solely intended to ensure that the Claimant's duties and responsibilities were appropriately managed by other colleagues during her leave day. At no time was there any intention to harass, humiliate, abuse, degrade, or bully the Claimant. Refer to page 21 to 46 of the Respondent Bundle of Documents, these are the screenshot of the conversation in the Respondent Company's WhatsApp group between 11 April 2024 and 22 April 2024.

Q14: The Claimant has stated that Respondent Company requested her to work while she was on leave. Can you share what actually

happened and clarify the Respondent Company's expectations regarding work communication during leave?

A14: On 22 April 2024, the Claimant took a half-day leave without obtaining my prior approval. Nevertheless, I did not expect the Claimant to work while on leave. My intention was simply to inquire about the status of the task, as I noticed it had not been properly handed over to a colleague for follow-up and I was concerned about its progress. This was done to ensure the task's progress, not as a request for the Claimant to work while on leave. It is the company's standard practice to respect employees' leave time, and any communication during such periods is typically limited to urgent matters that require immediate attention."

[17] The Claimant's immediate superior, Mr. Syed Danial Matin bin Syed Alwi (COW-1), had testified in COWS-1 that the Group Chat and/or email were means of communication within the Respondent Company for work-related matters.

[18] The Claimant's first three allegations in the said Resignation Letter relate to exchange of text messages in the Group Chat. The exchange of messages on 19.04.2024 started with a message from COW-1 to the Group Chat and addressed to the Claimant, seeking the Claimant's help to draft a response to a client's query. Excerpts of the relevant WhatsApp Messages on 19.04.2024 (pages 28-33, COB-1) are reproduced below for a better understanding of what transpired on the said date:

"*COW-1: I think we haven't send ZY the undertaking right? Can help me draft out a response to him and seek his opinion*

on the undertaking letter? (message forwarded by COW-1 to the Group Chat)

COW-1: *@~Sumithra above is from Jackson regarding the undertaking letter that you and I have spoken about. In case you're not aware, ZY is Zong Yi, Crossbridge's MAS officer. Please assist Jackson with this – thank you*

COW-1: *Please send Charles the draft email for his review yeah. Thanks*

Claimant: *Hi! Danial. Im on leave today. Can I do this on Monday?*

COW-2: *Who's covering you in your absence?*

Claimant: *Can i get Sharmila to assist as this is a legal matter?*

COW-2: *D, you can decide. I thought our process is always there's someone to cover. Sumitra you have sent your outstanding matters to the team member covering you?*

Claimant: *As of yesterday, i had completed all outstanding matters already assigned to me. This draft letter had not yet been assigned for me to handle.*

Claimant: *Those assigned to me, yes, completed.*

COW-2: *Got it thanks*

COW-1: *In what way is this a legal matter / opinion.*

This is just an email to MAS.

And don't tell me you are not assigned to this task because this is the first task you've been involved in from the beginning

You are bcc'd in all my emails about this and all replies are in Cred Ops

I will draft it myself thanks

Claimant: *Sorry Danial. I did not receive any email about this.*

Claimant: *I knew that there was an undertaking letter to be drafted but not exactly when this was done and the details of it as well.*

Claimant: *I can still assist on Monday.*

COW-2: *Sumitra, may I understand why you do not bring the laptop back? You have other ways to access emails and documents offsite?*

COW-2: *Team, just to be clear I do not expect anyone to be working 24/7 but I am very particular about responsibility and accountability…….*"

[19] It is to be noted that leave approval procedure in the Respondent Company had been changed by COW-2 and such change was communicated in the Group

Chat on 19.04.2024. The Claimant had stated in the Group Chat she had taken a half day leave on 22.04.2024 morning. In the subsequent exchange of text messages on 22.04.2024, the Claimant had suddenly sent a message at 12.30p.m. in the Group Chat that read *"I will be tendering my resignation today, Eddie"*. This sudden act of the Claimant had, as contended by the Respondent Company, left the Respondent Company with no option but to accept her resignation. Excerpts of the relevant WhatsApp Messages on 22.04.2024 (pages 38-45, COB-1) with regard to the Claimant's leave application are reproduced below for a better understanding of what transpired on the said date:

"*Claimant:* *I had informed Danial and Koey by email and applied via HREasily.*

COW-2: *Nope the practice is to inform me do you not read?*

Claimant: *Ok noted.*

COW-2: *It's not about noted. I am asking a simple question do you not read and follow the right process?*

Claimant: *I will be tendering my resignation today, Eddie.*"

[20] During her cross-examination, the Claimant was asked on the text messages exchanged in the Group Chat on 19.04.2024 and 22.04.2024. She had testified, amongst others, as follows:

(a) she took offence when COW-1 said “I will draft it myself” after the Claimant had told him she was on leave and suggested another colleague to handle the matter. She even went further to state that COW-1 was rude to say so and commented that COW-1 was not a legally qualified person. It is to be noted the Claimant had informed the Court during hearing of this matter that she holds a master degree in laws;

(b) she agreed that it was the Respondent Company’s culture to send messages in the Group Chat;

(c) she averred that the Group Chat could potentially humiliate someone and said the participants should take it privately. Yet she admitted she had never raised these concerns with COW-1 or COW-2; and

(d) she had further stated that the Group Chat was not the proper platform to address the relevant issues raised and her colleagues should have emailed her instead.

[21] The Claimant gave contradictory testimony in Court.

(a) The Claimant had attempted to justify during her cross-examination that the Group Chat was not the proper platform to address the relevant issues raised. However, evidence before this Court show the Claimant had chosen to tender her resignation by sending a message to the Group Chat immediately after COW-2 had queried on her leave

application and asked did she not read and follow the right process for the leave application.

(b) While contending that her colleagues should have sent her emails instead of messaging her in the Group Chat on the relevant work issues raised, she did not bring her laptop back on 19.04.2024 which made her inaccessible to emails offsite, culminating to her allegations that the Respondent Company contended "*she should take back her laptop to continue working on her leave day*". In contrast, the text exchanges on 19.04.2024 clearly show all that COW-2 had asked was: "*may I understand why you do not bring the laptop back? You have other ways to access emails and documents offsite?"* after the conversations in the Group Chat indicated that the Claimant did not have access to her office emails in which the Claimant had said she did not receive any email about what COW-1 was mentioning in the Group Chat.

(c) The Claimant had averred that the text messages on 19.04.2024 and 22.04.2024 should have been sent to her privately instead of being sent to the Group Chat even though she was well aware it was the Respondent Company's culture to send messages in the Group Chat. Furthermore, when COW-2 had texted her privately at about 6.36p.m. on 22.04.2024 (pages 55-56, COB-1) to check if she had any problems at work, she had refused and/or failed to reply to the same. It is to be noted the Claimant had admitted during cross-examination that she had received and read the said text message by COW-2.

(d) As correctly highlighted by the Respondent Company, the Claimant had asserted that she was a competent performer, yet she had purportedly alleged humiliation merely because she was asked to attend a performance review. The Claimant further emphasized that no formal warnings, or performance improvement plans were ever issued against her, but paradoxically characterised the very first attempt at a performance review about one month after commencement of her employment as harassment.

[22] In addition, the Court agrees with the Respondent Company's submission that the messages in the Group Chat were operational in nature, conveying routine instructions concerning leave procedures and task updates to staff, including the Claimant. The Company was entitled to ensure that the Claimant's duties were adequately covered during her absence and to obtain updates on outstanding work.

[23] Evidence before this Court clearly show that the Claimant did not contact her superior, COW-1 or the Company's human resources department prior to 22.04.2024 regarding the Claimant's alleged grievances through internal channel. She did not seek to resolve matters prior to her resignation.

[24] This Court has carefully analyzed all messages in the Group Chat found at pages 21-46, COB-1, including but not limited to the above messages but is unable to accept the Claimant's contentions that those messages amounted to continuous harassment and humiliation degrading and bullying of the Claimant as alleged. Neither could this Court consider COW-2's query that "*may I understand why you do not bring the laptop back? You have other ways to access emails and documents*

offsite?" tantamount to requesting the Claimant to work on her leave day. This Court is more inclined of the view that COW-2 merely sought clarification about the status of the task and this was done to ensure the task's progress, not as a request for the Claimant to work while on leave. Hence the Claimant's allegations that the Respondent Company had requested her to work on her leave day and thus violated the Malaysian labour law are unfounded and misconceived.

[25] In the case of ***Alan Thomas Bohlsen v Draftworldwide Sdn Bhd [2009] 1 LNS 550,*** the learned High Court Judge, Dato' Abdul Malik Ishak (as he then was) had emphasised that an objective approach ought to be taken to consider whether the breach by the employer is so fundamental that the employee can regard himself/herself as being constructively dismissed.

> "***[31] The phrase "constructive dismissal" do not give the employee the right to automatically terminate the contract when his employer had acted or behaved unreasonably towards him.*** *Only when the employer's wrongful conduct is serious, amounting to a fundamental breach of the contract where a reasonable person would be able to conclude that the employer had evinced an intention not to be bound by the contract, would the employee be entitled to consider himself as constructively dismissed ...*
>
> ***[32] It must be emphasised that only the actual conduct of the employer and not the perception of the employer's conduct by the employee that can support a case of constructive dismissal. So, the employee's personal opinion or subjective reaction to the***

change is irrelevant. *An objective view point is preferred in that whether speaking objectively the change by the employer to the employee was so fundamental that the employee can regard himself as constructively dismissed.*"

[Emphasis added]

[26] In my considered view, on the material before this Court, the exchange of text messages in the Group Chat did not amount to any harassment, humiliation degrading and bullying as alleged by the Claimant. The Company had not breached any fundamental term of the Claimant's employment contract.

[27] The next issue will be the Claimant's resignation on 22.04.2024 and the alleged request by the Respondent Company for a waiver of the notice period of two (2) weeks. The oral and documentary evidence before this Court show that the Claimant was aware of the new procedure for any leave application and that her application for emergency leave was still pending approval in the "HReasily" system of the Respondent Company at the time when she had purportedly taken a half day leave in the morning. See page 47, COB-1.

[28] For ease of reference, the Respondent Company's Reply is reproduced below:

"*On Tue, Apr 23, 2024 at 9:01 AM Koey Leow <koey@the-credence.com> wrote:*

Dear Sumitra,

We acknowledge receipt of your resignation letter dated 22nd April 2024, and it has been duly received and accepted.

Your resignation has been processed, although we must express our firm rejection of the accusations you've made regarding your reasons for resigning.

We had hoped to discuss these matters further with you, as per your request. However, your decision to threaten us with the filing of a police report and your abrupt departure from the office premises on 22nd April 2024 at approximately 3 pm, while leaving behind company assets, has left us with no alternative but to consider 22nd April 2024 as your last day with the company.

Furthermore, failure to respond to this email by 6 pm or to report to work will be considered as self-termination, and short notice will be deducted accordingly.

Thank you for your attention to this matter.

Best Regards,
Koey Leow
HR Manager "

[29] Notably, the Claimant had already announced her intention to tender her resignation in the Group Chat in the morning of 22.04.2024, before her writing of the said Resignation Letter and the said discussion held at the Respondent Company's

office in the afternoon of the same day. How would the Respondent Company's enquiry on whether the Claimant prefer a waiver of the two-week notice period made after her decision to resign, form one of the alleged grounds for her resignation claiming constructive dismissal? Such alleged ground is clearly an afterthought.

[30] It is further noted that despite the Claimant stating her willingness to serve the two weeks' notice period in the said Resignation Letter and her reply email to the Respondent Company's Reply, the Claimant did not report to work after her abrupt departure at about 3.30p.m. on 22.04.2024. In fact, the Claimant had only replied to the Respondent Company's Reply at 7.42p.m. even though she had been expressly requested to do so by 6.00p.m. The Respondent Company's Reply had also expressly requested her to report to work failing which it will be considered as self-termination, and short notice will be deducted accordingly. The Claimant had admitted during cross-examination that she had no intention at all to report to work after 22.04.2024.

[31] From the evidence before this Court, can it be said that the Company is guilty of conduct which is a significant breach going to the root of the contract of employment, or which shows that the Company no longer intends to be bound by one or more of the essential terms of the contract? The burden is on the Claimant to prove all conditions in the ***Bayer's case*** (supra) are satisfied, which she had failed.

CONCLUSION

[32] Based on the totality of the evidence adduced by both parties as well as the submissions made without regard to technicalities and legal form as stated under

Section 30(5) of the Act, this Court finds the Claimant has failed to discharge her burden of proving on the balance of probabilities that the Company had violated or breached any of the Claimant's fundamental terms and conditions of employment that entitled the Claimant to treat herself constructively dismissed. The Court thus holds that the Claimant had resigned voluntarily vide the said Resignation Letter dated 22.04.2024. Since no dismissal had taken place and the question of it being with just cause or excuse would not arise, there is no need to deliberate on the issue of whether there was just cause or excuse for the Claimant's alleged termination.

[33] Accordingly, the Claimant's claim is hereby dismissed.

HANDED DOWN AND DATED THIS 09th DAY OF DECEMBER, 2025.

-signed-

(CHOW SIEW LIN)
CHAIRMAN
INDUSTRIAL COURT OF MALAYSIA
KUALA LUMPUR